

*****Please note: this calendar will be heard in Department 53*****

Tentative Rulings

June 02, 2025

2:30 p.m.

*****IMPORTANT – PLEASE READ*****

Due to ongoing remediation efforts as a result of the water intrusion event in the courthouse, we are making every effort to minimize the amount of foot traffic in the courthouse. PLEASE DO NOT PHYSICALLY APPEAR FOR THE CALENDAR UNLESS IT IS ABSOLUTELY NECESSARY. The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail as soon as possible after Monday's calendar. IF YOU WISH TO APPEAR ON YOUR CASE, PLEASE CONSIDER APPEARING TELEPHONICALLY VIA WEBEX. Telephonic appearances can be made by calling the following phone number: **1-844-517-1271. When prompted, enter the following access code: **2490 169 8730**. Please be reminded that when you call in, you will be in open court and everything can be heard in the courtroom over the phone line. Please minimize all noise, or mute your phone if possible, and listen for your case to be called. Thank you for your patience and understanding. We apologize for any inconvenience.**

CONSERVATORSHIPS

CONSERVATORSHIP OF CLAYTON CAUDLE

Case Number: CVPG00-0022620

This matter is on calendar for hearing on a Petition for Appointment of a successor Limited Conservator of the Person. A Petition for appointment of a limited conservator after the death of a predecessor has the same requirements as a petition for initial appointment. Probate Code § 1860.5(a)(1). The Petition contains the following defects:

1. The matter has not been properly noticed. There is no proof of service filed for Far Northern Regional Center. The Regional Center must be served with a copy of the Petition and Notice of Hearing at least 30 days before the hearing. Probate Code §1461.4.
2. A Citation (form GC-320) was not issued or served for today's date. The citation must be personally served on the proposed Conservatee at least 15 days before the hearing. Probate Code § 1824.

The Public Defender has been appointed as counsel for the proposed Conservatee. The Court Investigator's Report recommends that the Petition be granted. This matter is continued to **Monday, July 7, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner shall have a Citation issued and served for the continued date. Petitioner shall also file and serve a Notice of Hearing for the continued date on all parties entitled to notice. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JEREMY ERICKSON

Case Number: 24PC-0032531

This matter is on calendar to confirm filing of the Proof of Service of Notice of Conservatee's Rights and Proof of Service of the Notice of Filing Inventory and Appraisal. All documents have been filed and are accepted by the Court. The Court confirms the future date of November 25, 2025, for Annual Review. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF GRETA GIVLER

Case Number: 23PC-0032165

This matter is on calendar for further proceedings on an Amended Petition to Address Actions of the Prior Power of Attorney, for Approval of Reconstructed Account, and for Damages for Elder Abuse. The Amended Petition has been noticed for hearing on June 30, 2025. That date is confirmed. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF PETER MITCHELL

Case Number: 24PC-0032302

This matter is on calendar for hearing on the First and Final Account and Second Report of Conservator of the Estate, Petition for its Settlement, Allowance of Fees and Costs, and Termination of the Estate. The matter has been properly noticed, with proof of service on file. No objections have been raised. The Petition is **GRANTED**. No proposed order has been submitted. The matter is continued to **Monday, July 14, 2025, at 2:30pm in Department 44** for confirmation of lodging of the proposed order. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JOHN ROCHA

Case Number: 24PC-0032552

The matter is on calendar for further proceedings on a Petition for Transfer Orders and a Request to Amend Letters and Orders. The matters have been properly noticed, with proof of service on file. The Court previously continued the matters to allow Ms. Silva to file a formal objection. No objections have been filed, and the paperwork appears to be in order. The Request to Amend Letters and Orders is **GRANTED**. A proposed Amended Order has been submitted and will be executed, and the Amended Letters shall issue. The Petition to Transfer is **GRANTED**. A provisional order for transfer has been lodged and will be executed. The matter is set for **Monday, August 25, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of a provisional order accepting transfer from Wisconsin. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JOHN SHADWELL

Case Number: CVPG03-0023876

This matter is on calendar on a Petition for Approval of Thirteenth and Final Account and Report of Conservator. The matter has been properly noticed, with proof of service on file. No objections have been raised. The Accounting contains the following defect: Paragraph 7 of the Petition requests approval of prior payments to the Conservator in the sum of \$9,096.14. However, item 2 on page 5 requests the Court approve prior payments in the amount of \$7,262.92, paid to Petitioner. The correct amount is required to be clarified. No proposed order has been submitted. The matter is continued to **Monday, July 21, 2025, at 2:30pm in Department 44** for further proceedings regarding the Petition. An Amended Petition or supplemental declaration must be filed curing the defects noted above. Petitioner shall also timely file and serve a new Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF BEATRICE WORK

Case Number: 24PC-0032602

This matter is on calendar for confirmation of filing the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and proof of service of the Notice of Filing of the Inventory and Appraisal. None of the required documents have been filed. A Status Report has not been filed. The Court will issue an Order to Show Cause to Conservators, Susan L. Ellison and Walter L. Works, Jr., as to why monetary sanctions in the sum of \$250.00 should not be imposed for failure to file the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and proof of service of the Notice of Filing of the Inventory and Appraisal, and failure to file a Status Report as ordered March 3, 2025. The hearing on the Order to Show Cause is set for **Monday, July 7, 2025, at 2:30 p.m. in Department 44.** The clerk is directed to prepare a separate Order to Show Cause.

This matter is also on calendar for further proceedings on a Notice of Motion to Withdraw Conservatorship. Nothing has been filed to cure the defects raised at the hearing April 21, 2025. The Court has reviewed the Court Investigator's report filed April 29, 2025, which recommends the Petition be granted and the conservatorship be terminated. The matter is continued to **Monday, July 7, 2025, at 2:30pm in Department 44** for further proceedings on the Motion to Withdraw. To move forward with the Petition, an amended petition must be filed curing the defects noted at the last hearing, and a new Notice of Hearing for the continued hearing date must be timely filed and served on all parties entitled to notice. **No appearance is necessary on today's calendar.**